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SECRET CIPHER

From SACSEA 121239Z

TO ALFSEA SECRETARY MOOSE OF INDIA
INFO C IN C EIF ACSEA SECRETARY GOVT OF BURMA
SACSEA COMMISSION No 1 SAIGON ALFSIAM RMA(M) SCAP
(FORLAND PASS),
RRVRE

SECRET. SAC3930/CA

SAC 3403/CA TOO 071231 JAN PARA 7 TWO FOREIGN OFFICE ADVISE LEGAL POSN OF FOREANS AND FORMOSANS MAY BE SUMMARISED AS FOLLOWS A KOREA AND FORMOSA STILL UNDER JAP SOVEREIGNTY AND STRICT TECHNICAL STATUS IN ENEMY TERRITORY UNDER ALLIED MILITARY OCCUPATION B INHABITANTS ARE STILL JAP CITIZENS C FORMOSA NOT YET CHINESE AND KOREA NOT YET ACQUIRED SOVEREIGN INDEPENDENT STATUS D KOREANS AND FORMOSANS IN SAIGON THEREFORE ARE TECHNICALLY ENEMY ALIENS E PURPORTED SEVERANCE OF ASSOCIATIONS SAIGON COULD NOT HAVE ANY EFFECT ON STATUS KOREA OR FORMOSA OR NATIONALS BELONGING TO OR EXILED FROM THOSE COUNTRIES THREE RPT THREE OPERTY POINT OF VIEW ARE BEING CLASSED AS ENEMIES UNTIL SATISFACTORILY PROVED THEY ARE NOT CLOAKING JAP ASSETS THIS IN LINE WITH US POLICY FOUR IT WILL BE APPRECIATED THAT WHILST THEY ARE TECHNICALLY ENEMY ALIENS THERE IS NO REASON WHY AS A MATTER OF POLICY THEY SHOULD NOT IN FACT BE TREATED ON DIFFERENT BASIS AND EACH CASE JUDGED ON ITS MERITS ONUS ON KOREANS OR FORMOSANS CONCERNED TO PROVE HE IS IN FACT FRIENDLY ALIEN HAVE REASON TO BELIEVE SOME OF THESE PEOPLE AMONGST THE WORST OF THE GUARDS OVER OUR PRISONERS DURING OCCUPATION AND WE MUST BE IN POSN TO TREAT SUCH AS JAP WAR CRIMINALS FIVE AS FORESHADOWED CAIRO AND POTSDAM DECLARATION KOREA WILL BE INDEPENDENT AND FORMOSA PART OF CHINA WE NATURALLY WISH TO PROMOTE FRIENDLY RELATION WITH KORANS AND FORMOSAND THEREFORE WHEN NO REASON TO CONTRARY LETTER OF LAW SHOULD BE INTERPRETED IN AS LIBERAL SENSE AS POSSIBLE.

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'True copies'
M. Maung
for Superintendent